

The Maharashtra Relief Undertakings (Special Provisions) Act, 1958

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State of Maharashtra - Act

The Maharashtra Relief Undertakings (Special Provisions) Act, 1958

MAHARASHTRA

India

The Maharashtra Relief Undertakings (Special Provisions) Act, 1958

Act 96 of 1958

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The Maharashtra Relief Undertakings (Special Provisions) Act, 1958

[2nd December, 1958]

Maharashtra Act No. XCVI of 1958

An Act to make temporary provisions for industrial relations and other matters to enable the State Government to conduct, or to provide loan, guarantee or financial assistance for the conduct of, certain industrial undertakings as a measure of preventing unemployment or of unemployment relief.

WHEREAS it is expedient to make temporary provisions for industrial relations and other matters to enable the State Government to conduct, or to provide loan, guarantee or financial assistance for the conduct of, certain industrial undertakings as a measure of preventing unemployment or of unemployment relief;

It is hereby enacted in the Ninth Year of the Republic of India as follows :?

1.
Short title and extent.
(1)
This Act may be called the Maharashtra Relief Undertakings (Special Provisions) Act.

(2)
It extends to the whole of the State of Maharashtra.

2.
Definitions .
In this Act, unless the context otherwise requires,?

(1)
"industry" means any business, trade, undertaking, manufacture or calling of employers and includes any calling, service, employment, handicraft or industrial occupation or vocation of workmen, and the word "industrial" shall be construed accordingly ;

(2)
"relief undertaking" means an industrial undertaking in respect of which a declaration under section 3 is in force.

3.
Declaration of relief undertaking.

(1)
If at any time it appears to the State Government necessary to do so, the State Government may, by notification in the Official Gazette, declare that an industrial undertaking specified in the notification whether started, acquired or otherwise taken over by the State Government, and carried on or proposed to be carried on by itself or under its authority, or to which any loan, guarantee or other financial assistance has been provided by the State Government shall, with effect from the date specified for the purpose in the notification, be conducted to serve as a measure of preventing unemployment or of unemployment relief and the undertaking shall accordingly be deemed to be a relief undertaking for the purposes of this Act.

(2)
A notification under sub-section (1) shall have effect for such period not exceeding twelve months as may be specified in the notification ; but it shall be renewable by like notifications from time to time for further periods not exceeding twelve months at a time, so however that all the periods in the aggregate do not exceed fifteen years.

4.
Power to prescribe industrial relations and other facilities temporarily for relief undertaking.

(1)
Notwithstanding any law, usage, custom, contract, instrument, decree, order, award, submission, settlement, standing order or other provision whatsoever, the State Government may, by notification in the official Gazette, direct that?

(a)
in relation to any relief undertaking and in respect of the period for which the relief undertaking continues as such under sub-section (2) of section 3?

(i)
all or any of the laws in the Schedule to this Act or any provisions thereof shall not apply (and such relief undertaking shall be exempt therefrom), or shall, if so directed by the State Government, be applied with such modifications (which do not however affect the policy of the said laws) as may be specified in the notification ;

(ii)
all or any of the agreements, settlements, awards or standing orders made under any of the laws in the Schedule to this Act, which may be applicable to the undertaking immediately before it was acquired or taken over by the State Government or before any loan, guarantee or other financial assistance was provided to it by, or with the approval of, the State Government, for being run as a relief undertaking, shall be suspended in operation or shall, if so directed by the State Government, be applied with such modifications as may be specified in the notification ;

(iii)
rights, privileges, obligations and liabilities shall be determined and be enforceable in accordance with clauses (i) and (ii) and the notification ;

(iv)

any right, privilege, obligation or liability accrued or incurred before the undertaking was declared a relief undertaking and any remedy for the enforcement thereof shall be suspended and all proceedings relative thereto pending before any court, tribunal, officer or authority shall be stayed ;

(b)

the right, privilege, obligation or liability referred to in clause (a) (iv) shall, on the notification ceasing to have force, revive and be enforceable and the proceedings referred to therein shall be continued:

Provided that in computing the period of limitation for the enforcement of such right, privilege, obligation or liability, the period during which it was suspended under clause (a) (iv) shall be excluded notwithstanding anything contained in any law for the time being in force.

(2)

A notification under sub-section (1) shall have effect from such date not being earlier than the date referred to in sub-section (1) of section 3, as may be specified therein, and the provisions of section 21 of the Bombay General Clauses Act, 1904, shall apply to the power to issue such notification.

Central Acts

(1)

The Industrial Employment (Standing Orders) Act, 1946 (XX of 1946).

(2)

The Industrial Disputes Act, 1947 (XIV of 1947).

Bombay Acts

(3)

The Bombay Industrial Relations Act, 1946 (Bom. XI of 1947).

(4)

The Bombay Shops and Establishments Act, 1948 (Bom. LXXIX of 1948). Madhya Pradesh Acts

(5)

The Central Provinces and Berar Shops and Establishments Act, 1947 (C. P. and Berar Act No. XXII of 1947).

(6)

The Central Provinces and Berar Industrial Disputes Settlement Act, 1947 (C. P. and Berar Act No. XXIII of 1947).

(7)

Deleted.

Hyderabad Act

(8)

The Hyderabad Shops and Establishments Act, 1951 (Hyd. Act X of 1951).

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